

Opposition that Plaintiff has not sufficiently shown she is indigent, and that evidence from trial—particularly the lease Plaintiff entered into three years ago in which she agreed to pay \$23,000 per month—suggests Plaintiff’s claim of indigency is not credible. Defendants further argue that Plaintiff’s showing of inability to obtain sufficient sureties fails under *Williams v. Freedomcard, Inc.* (2004) 123 Cal.App.4th 609, 615.

The Court finds that Plaintiff has failed to meet her burden under section 995.240. As such, Plaintiff’s request to stay the monetary penalties without an undertaking pursuant to sections 995.240 is DENIED.

Plaintiff alternatively requests an order temporarily staying enforcement of the judgment pursuant to section 918 “so that the status quo may be preserved while the Court considers the request for waiver of undertaking and stay pending appeal.” (Memorandum, 3:23-24; see also Notice of Motion, 2:12-14 [requesting temporary stay “pending hearing and determination of this motion”].) As an initial matter, such request for a stay until the time the present motion is heard appears moot now that the hearing on the present motion is here. Moreover, the Court has no authority to issue such a stay.

“[T]he trial court may stay the enforcement of any judgment or order.” (§ 918, subd. (a).) However, “[i]f the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days beyond the last date on which a notice of appeal could be filed.” (*Id.*, subd. (b).) This applies “whether or not an appeal will be taken from the judgment or order and whether or not a notice of appeal has been filed.” (*Id.*, subd. (c).)

Here, Defendants do not consent to the stay of enforcement as evidenced by their Opposition. Thus, the Court is only authorized, under section 918, to temporarily stay the judgment for a period up to 10 days beyond the last date when the notice of appeal could be filed. The last day for Plaintiff to file a notice of appeal was May 22, 2026, or 60 days from March 23, 2026 when the Court entered Judgment. With the additional 10 days, this would bring the temporary stay through June 1, 2026. As that date has passed, Plaintiff’s request for a temporary stay of the monetary judgment under section 918 is DENIED.

Defendants invite the Court to move, on its own motion, for sanctions pursuant to section 128.7, subdivision (c)(2). The request is DENIED without prejudice to Defendants’ right to move under section 128.7 subdivision (c)(1).

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Michael Bentley et al v. Mark Vedete et al

26CV000561

DEMURRER TO COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiffs are granted 10 days’ leave from Notice of Entry of Order to amend. (See Rules of Court, rule 3.1320(g).) Defendants are directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Tourbuilt LLC, dba Groove Golf, and Mark Vedete (collectively "Defendants") demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (f) and (g),² to the Complaint filed by Plaintiffs Michael D. Bentley and Paradigm Performance Group Inc. (collectively, "Plaintiffs"). The grounds for the demurrer are that the breach of contract claim (1) is not pled with any particularity or specificity; (2) fails to allege whether the alleged contract is written, oral, or implied; (3) does not allege the parties to the alleged contract or the date of the alleged contract; (4) is devoid of allegations about how Defendants breached the alleged contract; and (5) fails to allege how Plaintiffs suffered a loss.

"To state a cause of action for breach of contract, [a plaintiff] must plead the contract, his performance of the contract or excuse for nonperformance, [defendant's] breach and the resulting damage. Further, the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference. (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 458-59. Internal citations omitted.)

In Opposition, Plaintiffs argue, in conclusory fashion, that the Complaint sufficiently alleges the breach of contract cause of action, and submits a Declaration of Michael Bentley ("Bentley Decl.") containing facts relevant to the underlying dispute and attaching communications and records, including what the Court assumes is the subject contract. Plaintiffs do not reference or cite to their Complaint.

The Court's review of the Complaint confirms that it does not include any of the facts asserted through the Bentley Decl. in Opposition, and it does not attach a copy of the subject contract. The Court finds that the Complaint fails to state facts sufficient to allege a breach of contract cause of action. The Complaint, which is on Judicial Council Form PLD-C-001, marks the "breach of contract" box under section 8; however, no breach of contract cause of action attachment (Form PLD-C-001(1)) is included, nor are any facts in support of a breach of contract cause of action provided, other than: "Plaintiffs principal place of business is located in Napa County and contract was partially performed in Napa County." (Compl., § 8.) Additionally, the Complaint prays for damages of \$203,750.68. (Compl., § 10(a).)

Thus, the Demurrer is SUSTAINED WITH LEAVE TO AMEND.

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

In Reply, Defendants argue that the Court should also sustain the demurrer because Defendant Paradigm Performance Group Inc. is a suspended corporation and is appearing in propria persona. These points were raised for the first time in Reply, and therefore, the Court's order sustaining the demurrer is not based on them. However, the Court notes, for Plaintiffs' benefit in amending their complaint, that Defendants have asserted accurate propositions of law. (See *Grell v. Laci Le Beau Corp.* (1999) 73 Cal.App.4th 1300, 1306 ["During the period that a corporation is suspended for failure to pay taxes, it may not prosecute or defend an action..."]; *CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["[A] corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney ... [i]t must be represented by licensed counsel in proceedings before courts of record."].)

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In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

APPEARANCE REQUIRED to discuss the following two items.

Where a Petition for change of name of a minor is brought by only one parent, the non-petitioning parent, if living, must be personally served with the Order to Show Cause for Change of Name (OSC) and given 30 days' notice of the hearing. (See Code of Civ. Proc. § 1277, subd. (a)(4).) Where notice to the minor's father cannot reasonably be accomplished, the Court may allow Petitioner to utilize another manner of service which is reasonably calculated to give actual notice to the father. (*Ibid.*) The court file contains no proof of service on the minor's father or proof (i.e., declaration) that such service cannot reasonably be accomplished. The Petition only indicates the non-petitioning parent's location are "unknown." Petitioner's appearance is required to explain her efforts to find and serve the non-petitioning parent.

Moreover, an Order to Show Cause (OSC) was entered in this matter on April 23, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. There is no proof of publication (POP) in the Court's file. If no POP is filed prior to the hearing date, the Court will be forced to continue the matter, and the length of the continuance depends upon the status of publication. Petitioner's appearance is required to report to the Court the status of publication.

GUARDIANSHIP CALENDAR – Judge Francisca P. Tisher (Ret.), Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Guardianship of Jonathan Alejandro Torres Pimentel

26PR000074

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS